

Sou. Sarika Pandurang Kavale vs Pandurang Dattatraya Kavale And Anr on 29 March, 2022

Author: Bharati Dangre

Bench: Bharati Dangre

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CIVIL APPELLATE JURISDICTION
SECOND APPEAL NO.158 OF 2022
WITH
INTERIM APPLICATION NO.383 OF 2019

Sarika Pandurang Kavale .. Appellant

Versus

Pandurang Dattatraya Kavale & Anr. .. Respondents

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Mr.P.D.Dalvi for the Appellant/Applicant.

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CORAM: BHARATI DANGRE, J.

DATED : 29th MARCH, 2022 P.C:-

1. Heard the learned counsel for the appellant.

2. The second appeal involves the following substantial questions of law :-

A. Whether Decree passed by lower Appellate Court under Section 13(1)(i) of the Hindu Marriage Act, 1955 is sustainable in law ?

B. Whether the Org. Petitioner/husband of the present Appellant proved the ground of adultery for divorce against the wife?

M.M.Salgaonkar

C. Whether mere receipt of summons handed over by

Orig. Petitioner is suffice evidence to prove that the wife and Respondent No.2 Sanjay Balasaheb Patil are residing under the common roof and whether conclusion can be drawn that the wife is living in adulterous life?

3. Admit.

4. Issue notice to the respondents, making it returnable on 07/06/2022.

INTERIM APPLICATION NO.383 OF 2019

5. Interim Application No.383 of 2019 seeks stay of the impugned judgment.

Issue notice to the respondents, making it returnable on 07/06/2022.

(SMT. BHARATI DANGRE, J.) M.M.Salgaonkar